

Spain - National Anti-Money Laundering Obligations for Obligated Entities

Identification duties, thresholds, cash limits and reporting to the national financial intelligence unit

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Modelled on public sources	Spanish Law 10/2010 and Royal Decree 304/2014 framework, and SEPBLAC guidance, publicly available
Classification	SYNTHETIC - HACKATHON TRAINING DATA

This document is synthetic content authored for a multi-agent fraud intelligence hackathon. It paraphrases the structure and themes of public materials (Spanish Law 10/2010 and Royal Decree 304/2014 framework, and SEPBLAC guidance, publicly available) but contains no verbatim reproduction of them. Thresholds, codes and identifiers are illustrative.

1. Obligated entities and scope

Credit institutions, payment and electronic money institutions, insurers of life products, investment firms, currency exchange bureaux, virtual asset service providers, notaries, registrars, auditors, lawyers acting in financial transactions, and real estate agents are obliged entities.

2. Identification thresholds

Situation	Threshold	Requirement
Establishment of a business relationship	Any amount	Formal identification and verification before the relationship starts
Occasional transaction	1,000 EUR or more	Formal identification
Currency exchange	1,000 EUR or more	Formal identification
Money remittance	1,000 EUR or more	Formal identification and purpose of the transfer
Cash payments between a business and an individual	Above 1,000 EUR	Prohibited by tax legislation; report the attempt as an indicator
Cash payments where the payer is a non-resident individual	Above 10,000 EUR	Prohibited; escalate

3. Beneficial ownership - titular real

The beneficial owner is the natural person holding directly or indirectly more than 25% of capital or voting rights, or exercising control by other means. Where no such person exists, the administrator or senior managing official is recorded, with the reason documented. Corroboration against the central beneficial

ownership registry is required for legal persons incorporated in Spain.

4. Reporting duties

- Comunicacion por indicio: report to the financial intelligence unit without delay where there are indications or certainty that funds derive from criminal activity, and abstain from executing the transaction where feasible.
- Systematic monthly reporting of movements involving physical cash above 30,000 EUR and of transfers to or from designated high-risk territories.
- Cross-border cash declaration: travellers entering or leaving the country with 10,000 EUR or more in cash or bearer instruments must declare it; failure to declare is itself a reportable indicator.
- Internal declaration of movements of 500 EUR banknotes and of aggregated cash operations above 30,000 EUR per customer per month.

5. Local red flags

- Property purchase in a coastal or tourist region settled partly in cash or through a non-resident structure with no local economic ties.
- Use of a Spanish company incorporated within the last six months to invoice a related non-resident entity for consultancy with no staff.
- Repeated remittance to a single beneficiary country by multiple senders sharing an address, typical of remittance corridor mule networks.
- Hospitality or retail business declaring card turnover disproportionate to its cash deposits, or the reverse.
- Purchase of high-value vehicles or jewellery settled by successive transfers below the 1,000 EUR identification threshold.